

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
PHILLIP LEVERETTE,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER "JOHN
DOE", TAX REGISTRY NUMBER 953089, POLICE
OFFICER JUSTIN MCKNIGHT, BADGE NUMBER
22630, POLICE OFFICER STEVEN MORAN, BADGE
NUMBER 02932, AND SEVERAL UNIDENTIFIED
POLICE OFFICERS ASSIGNED TO THE
30TH PRECINCT,Defendants.
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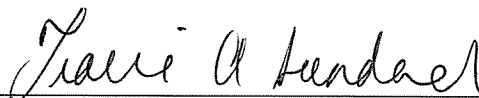
Index No.:

Date Purchased:

Plaintiff designates New York
County as the place of trial.Basis of venue is place
of occurrence.**SUMMONS**Plaintiff resides at
178 Belmont Avenue
Jersey City, New Jersey 07403

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
May 2, 2017TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
PHILLIP LEVERETTE
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendant's address:

CITY OF NEW YORK
100 Church Street
New York, New York 10007POLICE OFFICER "JOHN DOE", TAX
REGISTRY NUMBER 953089,
POLICE OFFICER JUSTIN MCKNIGHT,
BADGE NUMBER 22630
POLICE OFFICER STEVEN MORAN,
BADGE NUMBER 02932
30th Precinct
451 West 151st Street
New York, New York 10031

SUPREME COURT OF THE STATE OF NEW YORK
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NUMBER 02932, AND SEVERAL UNIDENTIFIED
POLICE OFFICERS ASSIGNED TO THE
30TH PRECINCT,

Defendants.
-----X

Plaintiff PHILLIP LEVERETTE by and through his attorneys, TRACIE A. SUNDACK
& ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE
OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN
MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE
NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE
30TH PRECINCT, respectfully alleges as follows:

1. That Plaintiff PHILLIP LEVERETTE is a black male, a citizen of the United States,
and at all relevant times a resident of the City and State of New York.
2. That at all times hereinafter mentioned Defendant CITY OF NEW YORK was
and still is a municipal corporation duly organized and existing under and by virtue of the
General Municipal Law of the State of New York.
3. That at all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents,
servants and/or employees operated, maintained and controlled the New York City Police
Department, including all the police officers thereof.
4. That at all times hereinafter mentioned, Defendant POLICE OFFICER "JOHN DOE",
TAX REGISTRY NUMBER 953089, was employed by Defendant CITY OF NEW YORK as a
police officer.

5. That at all times hereinafter mentioned, Defendant POLICE OFFICER “JOHN DOE”, TAX REGISTRY NUMBER 953089, acted within the scope of his employment for Defendant CITY OF NEW YORK.

6. That at all times hereinafter mentioned, Defendant POLICE OFFICER “JOHN DOE”, TAX REGISTRY NUMBER 953089, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

7. That at all times hereinafter mentioned, Defendant POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, was employed by Defendant CITY OF NEW YORK as a police officer.

8. That at all times hereinafter mentioned, Defendant POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, acted within the scope of his employment for Defendant CITY OF NEW YORK.

9. That at all times hereinafter mentioned, Defendant POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

10. That at all times hereinafter mentioned, Defendant POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, was employed by Defendant CITY OF NEW YORK as a police officer.

11. That at all times hereinafter mentioned, Defendant POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, acted within the scope of his employment for Defendant CITY OF NEW YORK.

12. That at all times hereinafter mentioned, Defendant POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

13. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT were employed by Defendant CITY OF NEW YORK as police officers.

14. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT acted within the scope of their employment for Defendant CITY OF NEW YORK.

15. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of their office as police officers for said city and state.

16. That on April 5, 2016, at approximately 3:45 P.M., Plaintiff PHILLIP LEVERETTE was lawfully on Riverside Drive, in front of or near 604 Riverside Drive, in the County, City and State of New York when he was suddenly accosted by members of the New York City Police Department including Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT.

17. That on the aforementioned date, time and place, Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT stopped Plaintiff PHILLIP LEVERETTE and asked him for identification. After Plaintiff PHILLIP LEVERETTE complied, Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT searched Plaintiff PHILLIP LEVERETTE. Upon information and belief, the search failed to find any evidence of

illegal activity or give cause for Plaintiff's arrest. After the search was completed, Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT handcuffed Plaintiff PHILLIP LEVERETTE, and placed him under arrest despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

18. Following his arrest, Plaintiff PHILLIP LEVERETTE was transported to the 30th Precinct (451 West 151st Street, New York, New York 10031). After arriving at the 30th Precinct, Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT began to process Plaintiff's arrest. As part of this procedure, Plaintiff PHILLIP LEVERETTE was ordered to comply with fingerprinting and the taking of a booking photo. At that time, before complying with the order, Plaintiff PHILLIP LEVERETTE asked why he was being arrest and what he was being charged with. Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT ignored Plaintiff's questions and repeated the order to comply with fingerprinting and the taking of a booking photo. Plaintiff PHILLIP LEVERETTE again inquired as to why he was being arrested. At that time, Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT escorted Plaintiff PHILLIP LEVERETTE to a holding cell and without any just cause or provocation, willfully, wantonly, maliciously, and recklessly assaulted, attacked and verbally

abused Plaintiff PHILLIP LEVERETTE.

19. Following the unprovoked and unwarranted assault, Plaintiff PHILLIP LEVERETTE was transported to Central Booking for arraignment, and following arraignment, Plaintiff was transported to Rikers Island..

20. That Defendants CITY OF NEW YORK, POLICE OFFICER “JOHN DOE”, TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT initiated criminal proceedings against Plaintiff PHILLIP LEVERETTE despite Defendants’ knowledge that they lacked probable cause to do so.

21. That all criminal charges against Plaintiff PHILLIP LEVERETTE were dismissed on October 10, 2016 (Docket No.: 2016NY021851 - New York County Criminal Court).

22. That Plaintiff PHILLIP LEVERETTE was held, detained and imprisoned from April 5, 2016, to October 10, 2016, by Defendants without cause, justification or privilege.

23. That on or about July 1, 2016, within 90 days of the happening of the complained of incident but more than 30 days prior to the commencement of this action, Plaintiff PHILLIP LEVERETTE duly presented, served, and filed a Notice of Claim, in writing, upon the Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant and claimant’s attorney; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

24. That more than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF NEW YORK, POLICE OFFICER “JOHN DOE”, TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT.

25. Upon information and belief, Defendant CITY OF NEW YORK waived its right to a municipal hearing regarding the above claim.

26. This action is commenced within one year and ninety days after the cause of action arose

27. As a result of the foregoing, Plaintiff PHILLIP LEVERETTE sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

**AS AND FOR A FIRST CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR ASSAULT**

28. Plaintiff PHILLIP LEVERETTE repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

29. The aforementioned acts of Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT, placed Plaintiff PHILLIP LEVERETTE in apprehension of imminent harmful and offensive bodily contact.

30. As a result of the conduct of Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT, Plaintiff PHILLIP LEVERETTE has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**AS AND FOR A SECOND CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR BATTERY**

31. Plaintiff PHILLIP LEVERETTE repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

32. Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER

STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT touched Plaintiff PHILLIP LEVERETTE in a harmful and offensive manner.

33. Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT did so without privilege or consent from Plaintiff PHILLIP LEVERETTE.

34. As a result of the conduct of Defendant, Plaintiff PHILLIP LEVERETTE has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

35. Plaintiff PHILLIP LEVERETTE repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

36. The level of force employed by Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT was objectively unreasonable and in violation of Plaintiff PHILLIP LEVERETTE's constitutional rights.

37. As a result of the aforementioned conduct of Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT, Plaintiff PHILLIP LEVERETTE was subjected to excessive force and sustained physical injuries.

AS AND FOR A FOURTH CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR FALSE ARREST

38. Plaintiff PHILLIP LEVERETTE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

39. Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT, arrested Plaintiff PHILLIP LEVERETTE in the absence of probable cause and without a warrant.

40. As a result of the aforesaid conduct by Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT, Plaintiff PHILLIP LEVERETTE was subjected to an illegal, improper and false arrest by the Defendants and taken into custody and cause to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the Defendants in criminal proceedings.

41. The aforesaid actions by the Defendants constituted a deprivation of Plaintiff PHILLIP LEVERETTE's rights.

AS AND FOR A FIFTH CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR FALSE IMPRISONMENT

42. Plaintiff PHILLIP LEVERETTE repeats, reiterates, and realleges each and every paragraph of this complaint and further allege:

43. As a result of the foregoing, Plaintiff PHILLIP LEVERETTE was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints.

44. Plaintiff PHILLIP LEVERETTE was conscious of said confinement and did not consent to same.

45. The confinement of Plaintiff PHILLIP LEVERETTE was without probable cause and

was not otherwise privileged.

46. As a result of the aforementioned conduct, Plaintiff PHILLIP LEVERETTE has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

AS AND FOR A SIXTH CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR MALICIOUS PROSECUTION

47. Plaintiff PHILLIP LEVERETTE repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

48. On or about December 3, 2014, Defendant CITY OF NEW YORK, its agents, servants, and employees, including Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT commenced a criminal proceeding against Plaintiff PHILLIP LEVERETTE, and falsely and maliciously, and without probable cause, charged Plaintiff with crimes.

49. Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT, with the consent and participation of one another, continued said proceeding despite the fact that they knew or should have known that Plaintiff PHILLIP LEVERETTE had not committed any crimes, that there were no exigent circumstances justifying a warrantless arrest, and that there was no need for the arrest and imprisonment of Plaintiff.

50. Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT, were directly and actively involved in the initiation of criminal proceedings against Plaintiff PHILLIP LEVERETTE.

51. Defendants POLICE OFFICER “JOHN DOE”, TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT lacked probable cause to initiate criminal proceedings against Plaintiff PHILLIP LEVERETTE.

52. Defendants POLICE OFFICER “JOHN DOE”, TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT were motivated by actual malice in initiating criminal proceedings against Plaintiff PHILLIP LEVERETTE.

53. Defendants POLICE OFFICER “JOHN DOE”, TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT misrepresented and falsified evidence before the District Attorney.

54. Defendants POLICE OFFICER “JOHN DOE”, TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT did not make a complete and full statement of facts to the District Attorney.

55. Defendants POLICE OFFICER “JOHN DOE”, TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT withheld exculpatory evidence from the District Attorney.

56. Defendants POLICE OFFICER “JOHN DOE”, TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER

STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT were directly and actively involved in the continuation of criminal proceedings against Plaintiff PHILLIP LEVERETTE.

57. Defendants POLICE OFFICER “JOHN DOE”, TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT lacked probable cause to continue criminal proceedings against Plaintiff PHILLIP LEVERETTE.

59. Defendants POLICE OFFICER “JOHN DOE”, TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT were motivated by actual malice in continuing criminal proceedings against Plaintiff PHILLIP LEVERETTE.

60. That, notwithstanding the perjurious and fraudulent conduct of Defendants POLICE OFFICER “JOHN DOE”, TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT, the criminal proceedings were terminated in Plaintiff PHILLIP LEVERETTE’s favor.

AS AND FOR A SEVENTH CAUSE OF ACTION
FOR FALSE ARREST UNDER 42 U.S.C. § 1983

61. Plaintiff PHILLIP LEVERETTE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

62. That at the aforementioned time and place, Defendants POLICE OFFICER “JOHN DOE”, TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT, placed Plaintiff PHILLIP LEVERETTE under arrest, despite Defendants’ knowledge that they

lacked probable cause to do so.

63. That Plaintiff PHILLIP LEVERETTE had not committed any offense and Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

64. That Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT were aware that probable cause did not exist for the arrest and detention of Plaintiff PHILLIP LEVERETTE and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff PHILLIP LEVERETTE and such actions were committed in bad faith.

65. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff PHILLIP LEVERETTE and such actions were committed in bad faith.

66. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT, all committed under color of their authority as a police officer, and while acting in that capacity, Plaintiff PHILLIP LEVERETTE was

deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

67. As a further result of the above-described acts, Plaintiff PHILLIP LEVERETTE was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

AS AND FOR AN EIGHTH CAUSE OF ACTION
FOR FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983

68. Plaintiff PHILLIP LEVERETTE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

69. That Plaintiff PHILLIP LEVERETTE was falsely imprisoned from April 5, 2016 until October 10, 2016, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

70. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT intended to confine Plaintiff PHILLIP LEVERETTE, and Plaintiff PHILLIP LEVERETTE was conscious of the confinement, and Plaintiff PHILLIP LEVERETTE did not consent to the confinement.

71. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in

bad faith and solely for the purpose of falsely imprisoning Plaintiff PHILLIP LEVERETTE and damaging Plaintiff PHILLIP LEVERETTE in his reputation and depriving him of his liberty.

72. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff PHILLIP LEVERETTE suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

AS AND FOR AN NINTH CAUSE OF ACTION
FOR MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

73. Plaintiff PHILLIP LEVERETTE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

74. That Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT misrepresented and falsified evidence before the District Attorney.

75. That Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT did not make a complete and full statement of facts to the District Attorney.

76. That Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED

POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT withheld exculpatory evidence from the District Attorney.

77. That Defendants POLICE OFFICER “JOHN DOE”, TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT were directly and actively involved in the initiation of criminal proceedings against Plaintiff PHILLIP LEVERETTE.

78. That Defendants POLICE OFFICER “JOHN DOE”, TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT lacked probable cause to initiate criminal proceedings against Plaintiff PHILLIP LEVERETTE.

79. That Defendants POLICE OFFICER “JOHN DOE”, TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT acted with malice in initiating criminal proceedings against Plaintiff PHILLIP LEVERETTE.

80. That Defendants POLICE OFFICER “JOHN DOE”, TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT were directly and actively involved in the continuation of criminal proceedings against Plaintiff PHILLIP LEVERETTE.

81. That Defendants POLICE OFFICER “JOHN DOE”, TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT lacked probable cause to continue criminal proceedings against Plaintiff PHILLIP LEVERETTE.

82. That Defendants POLICE OFFICER “JOHN DOE”, TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT acted with malice in continuing criminal proceedings Plaintiff PHILLIP LEVERETTE.

83. That Defendants POLICE OFFICER “JOHN DOE”, TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT misrepresented and falsified evidence throughout all phases of the criminal proceeding.

84. That, notwithstanding the perjurious and fraudulent conduct of Defendants POLICE OFFICER “JOHN DOE”, TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT, the criminal proceedings were terminated in Plaintiff PHILLIP LEVERETTE’s favor.

AS AND FOR A TENTH CAUSE OF ACTION
FOR MUNICIPAL LIABILITY

85. Plaintiff PHILLIP LEVERETTE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

86. That Defendants POLICE OFFICER “JOHN DOE”, TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/ authority, which is forbidden by the Constitution of the United States.

87. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

88. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well- being and constitutional rights of Plaintiff PHILLIP LEVERETTE.

89. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff PHILLIP LEVERETTE as alleged herein.

90. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff PHILLIP LEVERETTE as alleged herein.

91. That Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT, while acting under the color of state law, were directly and actively involved in violating Plaintiff PHILLIP LEVERETTE' constitutional rights.

92. That all of the foregoing acts by Defendant CITY OF NEW YORK, its agents, servants and/or employees including Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT, deprived Plaintiff PHILLIP LEVERETTE of federally protected rights including, but not limited to, the right:

- A. To be free from seizure and arrest not based on probable cause;
- B. To be free from unlawful search;
- C. To be free from unwarranted and malicious criminal prosecution;
- D. To be from excessive force; and
- E. To receive equal protection under the law.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR
NEGLIGENT HIRING AND RETENTION**

93. Plaintiff PHILLIP LEVERETTE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

94. That Defendant CITY OF NEW YORK was careless and reckless in hiring and retaining as and for its employee Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant employees who lacked the mental capacity and the ability to function as an employee of Defendant CITY OF NEW YORK; in that the defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

95. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT, to engage in the

wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR A TWELFTH CAUSE OF ACTION FOR
NEGLIGENT TRAINING AND SUPERVISION**

96. Plaintiff PHILLIP LEVERETTE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

97. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT in the exercise of their employment functions, and the failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff PHILLIP LEVERETTE. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

98. The failure of Defendant CITY OF NEW YORK to train, supervise, discipline or in any other way control Defendants POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT, in the exercise of his employment functions and the failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff PHILLIP LEVERETTE.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
FOR RESPONDEAT SUPERIOR LIABILITY

99. Plaintiff PHILLIP LEVERETTE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

100. Defendant CITY OF NEW YORK is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

101. As a result of the foregoing, Plaintiff PHILLIP LEVERETTE is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages in the sum of Two Million Dollars (\$2,000,000.00)

WHEREFORE Plaintiff PHILLIP LEVERETTE demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER "JOHN DOE", TAX REGISTRY NUMBER 953089, POLICE OFFICER JUSTIN MCKNIGHT, BADGE NUMBER 22630, POLICE OFFICER STEVEN MORAN, BADGE NUMBER 02932, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 30TH PRECINCT, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Two Million Dollars (\$2,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
May 2, 2017



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
PHILLIP LEVERETTE
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) SS.:
COUNTY OF WESTCHESTER)

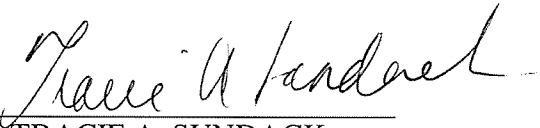
I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains her office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
May 2, 2017



TRACIE A. SUNDACK